

24STCV05056 24STCV05056

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV05056 Hearing Date: September 1, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV05056

GUSTAVO

VERGARA, AN INDIVIDUAL vs OLDCASTLE BUILDINGENVELOPE, INC., A CORPORATION, et al.

September

1, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF GUSTAVO VERGARA'S MOTION TO COMPEL DEFENDANT OLDCASTLE BUILDING ENVELOPE, INC. TO SERVE VERIFICATIONS TO ITS RESPONSES TO PLAINTIFF'S REQUEST FOR PRODUCTION OF DOCUMENTS, FORM INTERROGATORIES--EMPLOYMENT LAW, REQUEST FOR

ADMISSION, AND SPECIAL INTERROGATORIES, SET ONE.

RULING:

The Court orders the Motion
of calendar as moot and denies sanctions.

Defendant Oldcastle Buildingenvelope, Inc. to
give notice.

I.

BACKGROUND

On February 26, 2026, OSVALDO
PAREDES (Plaintiff) filed a Complaint against C.R. LAURENCE, CO., INC.; OLDCASTLE
BUILDING ENVELOPE, INC.; CRH AMERICAS, INC.; LUIS RODRIGUEZ; and MARIA ROBINSON
(Defendants), listing Causes of Action for:

1.

DISCRIMINATION, INCLUDING DISCRIMINATORY DISCHARGE, BASED ON ANCESTRY, NATIONAL
ORIGIN AND/OR IMMIGRATION STATUS

2.

DISCRIMINATION, INCLUDING DISCRIMINATORY DISCHARGE, BASED ON AGE

3.

HARASSMENT AND/OR HOSTILE WORK ENVIRONMENT BASED ON ANCESTRY, NATIONAL ORIGIN
AND/OR IMMIGRATION STATUS

4.

RETALIATION, INCLUDING RETALIATORY DISCHARGE BASED ON ACTUAL OR PERCEIVED
PARTICIPATION IN PROTECTED ACTIVITIES

5.

FAILURE TO PREVENT

6.

AIDING, ABETTING, AND/OR INCITING VIOLATIONS OF THE FEHA

7.

RETALIATORY UNFAIR IMMIGRATION RELATED PRACTICES.

Plaintiff alleges that Defendants wrongfully terminated his employment, including based upon national origin, and age.

On July 7, 2026, Plaintiff filed the Motion to compel Defendant OLDCASTLE BUILDING ENVELOPE, INC. to serve verifications to various discovery requests. Plaintiff also requested \$2,400.00 in sanctions against that Defendant and counsel.

OLDCASTLE BUILDING ENVELOPE, INC. (Defendant) opposes, contending that the Motion is moot after service of verifications.

II.

LEGAL STANDARD

Where respondents served untimely discovery responses after parties have filed motions to compel initial responses, courts have broad discretion as to ruling, including ordering the motion off calendar. (Sinaiko Healthcare Consulting, Inc. v. Klugman (2007) 148 Cal.App.4th 390, 409.)

III.

ANALYSIS

On August 21, 2026, Plaintiff filed a Notice of Partial Withdrawal of the Motion, while leaving sanctions at issue.

Defendant reportedly served the verifications that Plaintiff sought, on August 7, 2026, and now argues substantial justification for avoidance of sanctions, or advocates reductions of amounts for duplicative motions in four cases.

Where satisfactory responses have been served after the filing of motions to compel, courts nonetheless may award sanctions. (County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.)

Here, the Court finds

substantial justification, based upon Defendant’s ongoing meeting and conferring for extra time to serve verifications, while contending with voluminous discovery involving four related cases, and multiple corporate representatives.

IV.

CONCLUSION

Therefore, the Court orders

the Motion off calendar, and denies sanctions.